

# United States District Court for the District of South Carolina

## **Piedmont Booksellers Guild v. City of Norvale**

Case No. SYN-DSC-26-CV-0107 · Declaration of Miriam Bellweather, Executive Director

Filed January 7, 2026

I, Miriam Bellweather, declare from personal knowledge as follows. I have served as executive director of the Piedmont Booksellers Guild since 2018. The Guild is a nonprofit association whose members include independent bookstores, used-book sellers, small publishers, librarians, and individual readers in and around Norvale. I coordinate the Guild's public programs, maintain its event budget, communicate with City departments, and supervise applications for use of Cedar Commons. I verified the complaint filed in this action on January 5, 2026.

The Guild began holding Saturday book fairs at Cedar Commons in 2019. The fairs are open to everyone without admission. A typical event has between eighteen and twenty-eight booksellers arranged in temporary tents around the lawn. The Guild also invites authors to read for approximately twenty minutes and answer audience questions. We generally offer a modest honorarium because preparation and travel take time, and because we do not want participation limited to writers who can afford to appear without payment.

I have never selected an author because that person's views would please or provoke City officials. Our programs have included fiction, poetry, local history, children's books, essays, and practical nonfiction. The dispute is not about a City objection to any identified message. It concerns the timing, disclosures, cumulative charges, and uncertainty attached to presenting compensated speakers at our recurring fairs.

## How the Recurring Fairs Operate

Booksellers begin unloading before the public hours and remove their inventory the same afternoon. We mark a service route and tell vendors not to block it. The reading area usually consists of a small rug or low platform, a lectern, and several rows of movable chairs. People also stand along the walk or listen briefly before returning to vendor tables. We do not sell tickets or reserve seats. Author sessions are staggered so that one ends before the next begins.

The number of participating sellers changes with staffing, weather forecasts, and inventory. Author schedules are even less predictable. A local shop may offer to sponsor a writer after learning that the writer will be nearby. A publisher may confirm travel only weeks before release. Illness or transportation problems can require a substitute. In prior years, some of our most successful conversations were arranged during the final month, after the overall site plan and event date were already settled.

Our records show no fight, arrest, or violent episode at a Guild fair. I recall two minor medical responses over the years, one for dizziness on a hot day and another after a curbside fall. City employees have sometimes redirected unloading vehicles or reminded a vendor to move boxes from the service path. There can be short congestion near Market Lane when a reading ends. I take those concerns seriously and am willing to use signs, loading windows, aisle markings, and reasonable capacity measures based on actual site conditions.

## **The 2026 Series and Financial Effect**

The Guild publicly selected six Saturday dates for 2026: February 14, April 11, June 13, August 8, October 10, and December 12. We expect each fair to remain within the historical range of eighteen to twenty-eight sellers and four to seven paid authors. Weather, author availability, and member staffing may change those estimates. Repeating the same basic event does not mean every date has an identical nearby reservation, traffic pattern, or public-resource need, and we have offered to provide date-specific logistical information.

The ordinance requires \$240 for each covered date plus \$45 for every paid speaker. Six authors make a single fee \$510. If every 2026 fair had six paid authors, the scheduled charges would total \$3,060. That amount is significant to our event account. It could otherwise fund author honoraria, accessible seating, children's materials, tent weights, or small participation grants. We cannot simply raise admission because the Guild's central commitment is free public access.

We could increase contributions requested from member sellers, but several members have said that repeated increases would cause them to attend fewer dates. We could eliminate honoraria, but that would shift the cost to authors and disproportionately exclude people with limited means. We could present fewer writers, which would directly reduce the expressive program. These are not abstract possibilities; I make the budget and invitation decisions now, before each event occurs.

## Communications with the City

After the standardized form was issued, I asked the permitting office whether the six dates could be processed together and how the Guild should handle writers who had not yet confirmed. An intake employee explained that we could deliver materials in one packet, but each date required its own application, base fee, and decision. I was told to list each paid speaker's name, topic, and time and to request any later substitution in writing.

I asked whether a new author could be added after the forty-five-day deadline if the site layout and expected attendance did not change. The employee said staff would consider the request but could not guarantee approval. No one asked me whether the Guild or an author supported the City. No one instructed us to exclude a political or controversial book. My concern is that a lawful presentation can still be lost because the author becomes available after the deadline or because review cannot be completed in time.

For the February 14 event, the forty-five-day point arrived while invitations were unresolved. The Guild supplied planning information and continued communicating with staff, but we could not finalize every author under our customary process. We have not received a promise that all later additions will be allowed. Even if the City ultimately acts reasonably, uncertainty during the invitation period makes it harder to offer definite terms to writers and participating shops. A written reason after an opportunity has passed would not restore that program.

## **Need for Interim Protection**

The Guild seeks room to continue free literary programming while complying with legitimate safety measures. We do not ask to exceed the Commons' capacity, block an emergency route, interfere with a previously approved event, or disregard traffic instructions tied to observed conditions. We can provide attendance ranges, a diagram, loading times, an emergency contact, and an evolving presentation schedule. We object to treating each compensated speaker as an added fee and to making a complete name-and-topic list forty-five days in advance the condition for presenting that person.

Delay affects more than money. Invitations require authors and stores to reserve time, arrange travel, order inventory, and advertise. If we tell an author that appearance depends on later permission, that author may accept another opportunity. If a store cannot predict its contribution, it may decline a table. The February fair is especially close, but the same cycle will recur before each of the other announced Saturdays. A single event's passage will not resolve our planning problem.

I understand the City believes schedules help anticipate temporary crowds and that peaceful history does not eliminate all risk. I do not dispute those general propositions. Based on my experience, however, crowd movement can be addressed by the physical plan and total attendance without the challenged charge and rigid disclosure rule. I make this declaration to describe the Guild's actual operations and choices, not to offer a legal conclusion.

I declare under penalty of perjury that the foregoing is true and correct. Executed January 7, 2026, in Norvale, South Carolina.